



Bill Number: H.B. 2305

Gowan Floor Amendment

**Reference to: APPROPRIATIONS, TRANSPORTATION AND
TECHNOLOGY Committee Amendment**

Amendment drafted by: Kaytie Sherman

FLOOR AMENDMENT EXPLANATION

1. Specifies that the Heavy-duty Truck Towing Study Committee (Study Committee) is established to consider only private property towing practices.
2. Modifies Study Committee membership by removing the member who represents the trucking industry who is appointed by the President of the Senate.
3. Limits the Study Committee's duties to only reviewing the outlined practices that pertain to towing vehicles that weigh at least 26,000 pounds from private property.
4. Makes technical and conforming changes.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2305

(Reference to APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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≤≤Double orange underlined carets enclosing an entire section≥≥ indicate that the amendment to an amendment is adding the section to the bill.

~~≤≤Orange strikeout with double orange underlined carets enclosing an entire section≥≥~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-499.05, Arizona Revised Statutes, is amended
3 to read:

4 9-499.05. State preemption; rates for private towing carrier;
5 notice of parking violations; photographic
6 documentation; tow carrier identification;
7 release of motor vehicle; damages; violation;
8 classification; applicability; definition

9 ~~A. The governing body of an incorporated city or town may regulate~~
10 ~~the maximum rate and charge for towing, transporting or impounding a motor~~
11 ~~vehicle from private property without the permission of the owner or~~
12 ~~operator of the vehicle by any private towing carriers doing business~~
13 ~~within its boundaries. A private towing carrier is subject to the maximum~~
14 ~~rate and charge regulation prescribed by the city or town for all such~~
15 ~~towing, transporting or impounding services if the vehicle being towed or~~
16 ~~transported is towed from private property located within the boundaries~~
17 ~~of the city or town.~~

1 A. THE REGULATION OF TOWING RATES FOR MOTOR VEHICLES THAT ARE TOWED
2 FROM PRIVATE PROPERTY BY PRIVATE TOWING CARRIERS PURSUANT TO THIS SECTION
3 IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES FOR
4 MOTOR VEHICLES THAT ARE TOWED BY PRIVATE TOWING CARRIERS PURSUANT TO THIS
5 SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN OR
6 OTHER POLITICAL SUBDIVISION OF THIS STATE.

7 B. FOR A CITY OR TOWN THAT DOES NOT REGULATE THE RATE FOR PRIVATE
8 TOWING MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026, THE
9 RATE FOR TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE THAT
10 IS TOWED FROM PRIVATE PROPERTY SHALL BE THE RATE PUBLISHED IN THE
11 DEPARTMENT OF PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM
12 WHICH THE MOTOR VEHICLE WAS TOWED.

13 C. ON OR BEFORE ~~[JANUARY]~~ [JULY] 1, 2027, A CITY OR TOWN THAT HAS,
14 AS OF JANUARY 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING ~~[OF]~~ MOTOR
15 VEHICLES FROM PRIVATE PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING
16 ~~[OF]~~ MOTOR VEHICLES FROM PRIVATE PROPERTY TO THE MARKET STANDARDS OR THE
17 RATES AND FEES PRESCRIBED BY THIS SECTION.

18 ~~B.~~ D. The owner or agent of the owner of the private property
19 shall be deemed to have given consent to unrestricted parking by the
20 general public in any parking area of the private property unless ~~such~~ THE
21 parking area is posted with signs as prescribed by this subsection ~~which~~
22 THAT are clearly visible and readable from any point within the parking
23 area and at each entrance. THIS SUBSECTION DOES NOT APPLY IF A MOTOR
24 VEHICLE IS TOWED FROM A SINGLE-FAMILY RESIDENCE AND THE OWNER OF THE
25 SINGLE-FAMILY RESIDENCE OR A TENANT AT THE SINGLE-FAMILY RESIDENCE IS THE
26 PARTY WHO REQUESTED THE TOW. ~~Such~~ THE signs ~~shall contain~~ MUST MEET, at a
27 minimum, ALL OF the following REQUIREMENTS:

- 28 ~~1. Restrictions on parking.~~
29 ~~2. Disposition of vehicles found in violation of the parking~~
30 ~~restrictions.~~
31 ~~3. Maximum cost to the violator, including storage fees and any~~
32 ~~other charges that could result from the disposition of a vehicle parked~~
33 ~~in violation of parking restrictions.~~
34 ~~4. Telephone number and address where the violator can locate the~~
35 ~~violator's vehicle.~~

36 1. BE POSTED IN A MANNER TO FACE AND BE CONSPICUOUSLY VISIBLE TO
37 THE DRIVER OF A MOTOR VEHICLE THAT ENTERS ~~[THE]~~ [A PRIVATE] PARKING
38 FACILITY AND BE POSTED ON THE LEFT OR RIGHT SIDE OF EACH DRIVEWAY OR CURB
39 CUT IN WHICH A MOTOR VEHICLE CAN ENTER THE FACILITY.

40 2. BE CONSTRUCTED USING WEATHER RESISTANT MATERIALS.

41 3. BE A MINIMUM OF NINE INCHES WIDE AND TWELVE INCHES TALL AND NOT
42 MORE THAN TWELVE INCHES WIDE AND EIGHTEEN INCHES TALL.

43 4. CONTAIN ALL OF THE FOLLOWING:

44 (a) THE FOLLOWING LANGUAGE: "UNAUTHORIZED VEHICLES WILL BE TOWED AT
45 THE MOTOR VEHICLE OWNER'S OR OPERATOR'S EXPENSE PURSUANT TO ARIZONA
46 REVISED STATUTES SECTION 9-499.05".

47 (b) A TELEPHONE NUMBER THAT IS MONITORED TWENTY-FOUR HOURS A DAY
48 THAT ENABLES THE MOTOR VEHICLE OWNER OR OPERATOR TO LOCATE THE TOWED MOTOR
49 VEHICLE.

1 (c) THE TOWING AND STORAGE RATE AND INFORMATION ON THE RELEASE OF
2 THE MOTOR VEHICLE AND THE RIGHTS OF THE OWNER OF THE MOTOR VEHICLE THROUGH
3 A WEBSITE LINK OR QR CODE.

4 5. BE PERMANENTLY MOUNTED ON A POLE, POST, PERMANENT WALL OR
5 PERMANENT BARRIER.

6 ~~E.~~ E. It is unlawful for a private towing carrier to tow or
7 transport a motor vehicle from private property without the permission of
8 the owner or operator of the motor vehicle unless ~~such~~ THE private towing
9 carrier receives a request from a law enforcement agency or the express
10 written permission from the owner or the agent of the owner of the
11 property that has complied with the requirements of subsection ~~B~~ D OF
12 THIS SECTION. The owner or the owner's agent shall either sign each
13 towing order or authorize the tow by a written contract ~~which~~ THAT is
14 valid for a specific length of time. The private towing carrier may not
15 act as the agent of the owner.

16 ~~D. A person who violates subsection C is guilty of a class 2~~
17 ~~misdemeanor.~~

18 F. BEFORE MECHANICALLY CONNECTING A MOTOR VEHICLE TO A PRIVATE
19 TOWING CARRIER, THE PRIVATE TOWING CARRIER SHALL DOCUMENT, THROUGH THE USE
20 OF DATE-AND-TIME-STAMPED DIGITAL PHOTOGRAPHY OR DIGITAL VIDEO, THE NATURE
21 OF THE PRIVATE PARKING VIOLATION. THE PRIVATE TOWING CARRIER SHALL
22 PROVIDE ALL PHOTOGRAPHIC OR VIDEO IMAGES TO THE OWNER OF THE MOTOR VEHICLE
23 OR THE OWNER'S AGENT, IF REQUESTED. THE PHOTOGRAPHIC EVIDENCE SHALL
24 INCLUDE ALL OF THE FOLLOWING:

- 25 1. IMAGES OF THE MOTOR VEHICLE BEING TOWED.
- 26 2. IMAGES OF THE SIGNAGE REQUIRED PURSUANT TO SUBSECTION D OF THIS
- 27 SECTION, IF APPLICABLE.
- 28 3. IMAGES OF THE ENTIRE MOTOR VEHICLE TAKEN FROM ALL FOUR CORNERS
- 29 OF THE MOTOR VEHICLE.
- 30 4. IMAGES OF THE MOTOR VEHICLE'S LICENSE PLATE OR MOTOR VEHICLE
- 31 IDENTIFICATION NUMBER.

32 G. ANY PRIVATE TOWING CARRIER THAT TOWS A MOTOR VEHICLE FROM
33 PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE MOTOR VEHICLE'S OWNER OR
34 THE OWNER'S AGENT SHALL NOTIFY THE APPROPRIATE LAW ENFORCEMENT AGENCY
35 WITHIN ONE HOUR AFTER MECHANICALLY CONNECTING THE MOTOR VEHICLE TO A
36 PRIVATE TOWING CARRIER. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE
37 APPROPRIATE LAW ENFORCEMENT AGENCY WITH ALL OF THE FOLLOWING INFORMATION:

- 38 1. THE NAME AND ADDRESS OF THE MOTOR VEHICLE'S OWNER, IF KNOWN.
- 39 2. THE MOTOR VEHICLE'S LICENSE PLATE NUMBER AND VEHICLE
- 40 IDENTIFICATION NUMBER AND A DESCRIPTION OF THE MOTOR VEHICLE.
- 41 3. THE REASON FOR THE TOW OF THE MOTOR VEHICLE.
- 42 4. THE STREET ADDRESS OF THE IMPOUND LOT WHERE THE MOTOR VEHICLE
- 43 WILL BE IMPOUNDED.
- 44 5. THE NAME AND ADDRESS OF THE PRIVATE TOWING CARRIER THAT WILL TOW
- 45 THE MOTOR VEHICLE AND THE NAME OF THE PERSON WHO WILL TOW THE MOTOR
- 46 VEHICLE ON BEHALF OF THE PRIVATE TOWING CARRIER.
- 47 6. A PHONE NUMBER THAT IS ANSWERED TWENTY-FOUR HOURS A DAY, SEVEN
- 48 DAYS A WEEK FOR THE PRIVATE TOWING CARRIER AND THE IMPOUND LOT WHERE THE
- 49 MOTOR VEHICLE WILL BE IMPOUNDED.

1 H. A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED MOTOR
2 VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR MAKES
3 ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT TO SUBSECTION B OF
4 THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT OF PUBLIC SAFETY
5 TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE MOTOR VEHICLE BY
6 PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND ONE OF THE
7 FOLLOWING:

8 1. A VALID CERTIFICATE OF TITLE.

9 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
10 USE THREE-DAY PERMIT.

11 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
12 FROM LEGAL CLAIMS.

13 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.

14 5. A CERTIFIED VEHICLE RECORD.

15 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
16 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
17 TOW.

18 I. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR VEHICLE OWNER
19 WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL PROVIDE A
20 COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT WHO
21 RECLAIMS THE MOTOR VEHICLE.

22 J. A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE GREATER THAN
23 THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF THIS SECTION
24 MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER FOR ANY OVERCHARGES OR
25 UNAUTHORIZED CHARGES.

26 K. A PRIVATE TOWING CARRIER OR PRIVATE PARKING FACILITY OWNER THAT
27 INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS LIABLE TO
28 THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE VIOLATION FOR
29 DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED AS PART OF THE
30 MOTOR VEHICLE'S TOWING AND STORAGE.

31 L. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
32 CONDITION OF RELEASING A MOTOR VEHICLE.

33 ~~F.~~ M. This section ~~shall apply~~ APPLIES only to services performed
34 while a person is actually engaged in the activities of a private towing
35 carrier.

36 ~~F.~~ N. ~~The provisions of~~ This section ~~do~~ DOES not apply to
37 abandoned or junk vehicles disposed of pursuant to title 28, chapter 11.

38 O. A PERSON WHO VIOLATES THIS SECTION IS GUILTY OF A CLASS 2
39 MISDEMEANOR.

40 P. THIS SECTION DOES NOT APPLY TO AGREEMENTS ENTERED INTO BETWEEN
41 LAW ENFORCEMENT AGENCIES AND PRIVATE TOWING CARRIERS FOR LAW
42 ENFORCEMENT-INITIATED TOWING SERVICES.

43 ~~[Q. THIS SECTION SHALL BE ENFORCED BY A CITY'S OR TOWN'S LAW~~
44 ~~ENFORCEMENT AGENCY.]~~

45 ~~[R.]~~ [Q.] A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY ~~[A~~
46 ~~PRIVATE PROPERTY]~~ [AN] OWNER OR AN AGENT OF ~~[A]~~ [AN OWNER OF] PRIVATE
47 PROPERTY ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED. ~~[A PRIVATE~~
48 ~~PROPERTY]~~ [AN] OWNER OR AN AGENT OF ~~[A]~~ [AN OWNER OF] PRIVATE PROPERTY
49 ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE TO

1 ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR OTHER
2 COMPENSATION FOR THE PROVIDED TOWING SERVICE.

3 ~~6.~~ [S.] [R.] For the purposes of this section, "private towing
4 carrier":

5 1. Means any person who commercially offers services to tow,
6 transport or impound motor vehicles from private property without the
7 permission of the owner or operator of the vehicle by use of a truck or
8 other vehicle designed for or adapted to that purpose

9 2. DOES NOT INCLUDE A MOTOR VEHICLE DEALERSHIP.

10 Sec. 2. Section 11-251.04, Arizona Revised Statutes, is amended to
11 read:

12 11-251.04. State preemption; rates for private towing
13 carrier; release of motor vehicle; damages;
14 applicability; definition

15 ~~A. Except as provided in subsection B of this section, the board of~~
16 ~~supervisors may regulate the maximum rate and charge for towing,~~
17 ~~transporting or impounding a motor vehicle from private property without~~
18 ~~the permission of the owner or operator of the vehicle by any private~~
19 ~~towing carriers doing business within the boundaries of the county.~~
20 ~~A private towing carrier is subject to the maximum rate and charge~~
21 ~~regulation prescribed by the board of supervisors for all such towing,~~
22 ~~transporting or impounding services if the vehicle being towed or~~
23 ~~transported is towed from private property located on property that lies~~
24 ~~within the boundaries of the county.~~

25 ~~B. The provisions of Subsection A of this section shall not apply~~
26 ~~to the towing, transporting or impounding of a motor vehicle from private~~
27 ~~property without the permission of the owner or operator of the vehicle by~~
28 ~~a private towing carrier where the vehicle being towed or transported is~~
29 ~~towed or transported from property that lies within the boundaries of an~~
30 ~~incorporated city or town that has regulated such towing, transporting or~~
31 ~~impounding pursuant to section 9-499.05.~~

32 A. THE REGULATION OF TOWING RATES FOR MOTOR VEHICLES THAT ARE TOWED
33 FROM PRIVATE PROPERTY BY PRIVATE TOWING CARRIERS PURSUANT TO THIS SECTION
34 IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES FOR
35 MOTOR VEHICLES THAT ARE TOWED BY PRIVATE TOWING CARRIERS PURSUANT TO THIS
36 SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN OR
37 OTHER POLITICAL SUBDIVISION OF THIS STATE.

38 B. FOR A COUNTY THAT DOES NOT REGULATE THE RATE FOR PRIVATE TOWING
39 MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026, THE RATE FOR
40 TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE THAT IS TOWED
41 FROM PRIVATE PROPERTY SHALL BE THE RATE PUBLISHED IN THE DEPARTMENT OF
42 PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM WHICH THE MOTOR
43 VEHICLE WAS TOWED.

44 C. ON OR BEFORE [JANUARY] [JULY] 1, 2027, A COUNTY THAT HAS, AS OF
45 JANUARY 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING [OF] MOTOR VEHICLES
46 FROM PRIVATE PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING [OF MOTOR
47 VEHICLES] FROM PRIVATE PROPERTY TO THE MARKET STANDARDS OR THE RATES AND
48 FEES PRESCRIBED BY THIS SECTION.

49 ~~C.~~ D. It is unlawful for a private towing carrier to tow or
50 transport a motor vehicle from private property without the permission of

1 the owner or operator of the motor vehicle unless ~~such~~ THE private towing
2 carrier receives a request from a law enforcement agency or the express
3 written permission from the owner or the agent of the owner of the
4 property. The owner or ~~his~~ THE OWNER'S agent shall either sign each
5 towing order or authorize the tow by a written contract ~~which~~ THAT is
6 valid for a specific length of time. The private towing carrier may not
7 act as the agent of the owner.

8 ~~D. A person who violates subsection C is guilty of a class 2~~
9 ~~misdemeanor.~~

10 E. A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED MOTOR
11 VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR MAKES
12 ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT TO SUBSECTION B OF
13 THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT OF PUBLIC SAFETY
14 TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE MOTOR VEHICLE BY
15 PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND ONE OF THE
16 FOLLOWING:

- 17 1. A VALID CERTIFICATE OF TITLE.
- 18 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
19 USE THREE-DAY PERMIT.
- 20 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
21 FROM LEGAL CLAIMS.
- 22 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.
- 23 5. A CERTIFIED VEHICLE RECORD.
- 24 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
25 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
26 TOW.

- 27 7. PROOF OF A LIEN ON THE MOTOR VEHICLE, IF APPLICABLE.

28 F. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR VEHICLE OWNER
29 WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL PROVIDE A
30 COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT WHO
31 RECLAIMS THE MOTOR VEHICLE.

32 G. A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE GREATER THAN
33 THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF THIS SECTION
34 MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER OF ANY OVERCHARGES OR
35 UNAUTHORIZED CHARGES.

36 H. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
37 CONDITION OF RELEASING A MOTOR VEHICLE.

38 I. A PRIVATE TOWING CARRIER OR PRIVATE PARKING FACILITY OWNER THAT
39 INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS LIABLE TO
40 THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE VIOLATION FOR
41 DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED AS PART OF THE
42 MOTOR VEHICLE'S TOWING AND STORAGE.

1 ~~[J. THIS SECTION SHALL BE ENFORCED BY A COUNTY'S LAW ENFORCEMENT~~
2 ~~AGENCY.]~~

3 ~~[K.] [J.]~~ A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY ~~[A~~
4 ~~PRIVATE PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE
5 PROPERTY ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED. ~~[A PRIVATE~~
6 ~~PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE PROPERTY
7 ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE TO
8 ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR OTHER
9 COMPENSATION FOR THE PROVIDED TOWING SERVICE.

10 ~~F. [L.] [K.]~~ This section ~~shall apply~~ APPLIES only to services
11 performed while a person is actually engaged in the activities of a
12 private towing carrier.

13 ~~F. [M.] [L.]~~ For the purposes of this section, "private towing
14 carrier" means any person who commercially offers services to tow,
15 transport or impound motor vehicles from private property without the
16 permission of the owner or operator of the vehicle by use of a truck or
17 other vehicle designed for or adapted to that purpose.

18 Sec. 3. Heavy-duty truck towing study committee; membership;
19 duties; report; delayed repeal

20 A. The heavy-duty truck towing study committee is established ~~{{to~~
21 ~~consider private property towing practices only}}~~ and consists of the
22 following members:

23 1. One member of the house of representatives who is appointed by
24 the speaker of the house of representatives.

25 2. One member of the senate who is appointed by the president of
26 the senate.

27 3. Two members who represent the private towing industry, one who
28 is appointed by the speaker of the house of representatives and one who is
29 appointed by the president of the senate.

30 4. ~~{{Two members}}~~~~{{One member}}~~ who ~~{{represent}}~~ ~~{{represents}}~~
31 the trucking industry~~{{, one}}~~ who is appointed by the speaker of the
32 house of representatives ~~{{and one who is appointed by the president of~~
33 ~~the senate}}~~.

34 5. One member who represents the department of public safety and
35 who is appointed by the governor.

36 B. The members of the board shall elect a chairperson and vice
37 chairperson.

38 C. The study committee shall ~~{{only}}~~~~{{~~
39 ~~1. Review}}~~ ~~{{review}}~~ the ~~{{current}}~~ ~~{{following}}~~ practices that
40 ~~{{are related}}~~ ~~{{pertain}}~~ to towing vehicles that weigh twenty-six
41 thousand pounds or more ~~{{from private property}}~~.

42 ~~{{2.}}~~~~{{1.}}~~ Review cargo release practices.

43 ~~{{3.}}~~~~{{2.}}~~ Review heavy-duty truck towing enforcement issues.

44 ~~{{4.}}~~~~{{3.}}~~ Evaluate the minimum towing insurance requirements.

45 ~~{{5.}}~~~~{{4.}}~~ Discuss establishing a state towing board and
46 potential state towing board duties.

1 D. On or before June 30, 2027, the committee shall submit a report
2 regarding the committee's activities and recommendations to the governor,
3 the president of the senate and the speaker of the house of
4 representatives and shall provide a copy of the report to the secretary of
5 state.

6 E. This section is repealed from and after December 31, 2027.

7 <<Sec. 4. Department of public safety; towing compliance
8 unit; report; recommendations

9 [A. On or before December 31, 2026, the department of public safety
10 shall submit a report to the president of the senate and the speaker of
11 the house of representatives on establishing and administering a towing
12 compliance and enforcement unit within the department of public safety to
13 regulate private towing carriers in this state. The report must include
14 all of the following:

15 1. The ability of a towing and compliance enforcement unit to do
16 all of the following:

17 (a) Investigate complaints involving private towing carriers.

18 (b) Enforce applicable private towing carrier rates.

19 (c) Enforce compliance with state private towing carrier laws and
20 rules.

21 (d) Investigate and take enforcement action against excessive,
22 fraudulent, deceptive or predatory private towing carrier practices.

23 (e) Conduct audits and investigations of private towing carriers
24 that perform private towing on receiving a complaint, on finding a pattern
25 of violation of private towing laws in this state or on the referral from
26 a law enforcement agency.

27 2. A proposed budget and recommendations for the appropriation of
28 monies or the assessment and use of private towing fees for a towing and
29 compliance enforcement unit.

30 B. The department of public safety shall submit to the joint
31 legislative budget committee for review the proposed budget
32 recommendations for the appropriation of monies or the assessment and use
33 of private towing fees for a towing and compliance enforcement unit.]>>

34 Enroll and engross to conform

35 Amend title to conform

DAVID GOWAN

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